

24STCV08288 24STCV08288

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV08288 Hearing Date: July 28, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

28, 2026 TRIAL DATE: August 2, 2027

CASE: Mike Tehrani, et al. v. Mehrdad Adjari

CASE NO.: 24STCV08288

PURE

ECO, INC.'S DEMURRER TO SECOND AMENDED COMPLAINT

MOVING

PARTY: Defendant Pure Eco, Inc.

RESPONDING

PARTY: Plaintiffs Mike Tehrani and Eskin

Builders Corp.

I. INTRODUCTION

This case concerns the property located at 12428 Laurel

Terrace Drive, Studio City, California 91604 (the Property). Defendant Mehrdad Adjari (Adjari) is the owner of the Property. In 2021, Adjari and plaintiffs

Mike Tehrani and Eskin Builders, Corp. (Plaintiffs) entered into a written contract wherein Plaintiff agreed to provide labor, services, equipment, or

materials for a construction project on the Property. Plaintiffs completed the work. Adjari failed to pay Plaintiffs for the amount due.

On April 2,
2024, Plaintiffs commenced this action.

On April
16, 2026, Adjari filed the operative First Amended Cross-Complaint against Plaintiffs
for breach of contract and negligence.

On February 20, 2026, Plaintiffs filed the operative Second
Amended Complaint ("SAC") alleging twenty-one causes of action. For the first time, Plaintiffs name Pure Eco,
Inc. ("Pure Eco") in the SAC as a defendant.
Pure Eco performed construction work on a portion of the Property.

On June 17,
2026, Pure Eco filed a demurrer to the 14th-20th causes of
action in the SAC.

On July 15,
2026, Plaintiffs filed an opposition.[1]

On July 21,
2026, Pure Eco filed a reply.

II. DISCUSSION

Plaintiffs argue the court
should continue the hearing and order the parties to meet and confer because
Pure Eco did not meet and confer as required by Coe of Civil Procedure section
430.41. The argument is meritorious.

"Before filing a demurrer
pursuant to this chapter, the demurring party shall meet and confer in person,
by telephone, or by video conference with the party who filed the pleading that
is subject to demurrer for the purpose of determining whether an agreement can
be reached that would resolve the objections to be raised in the demurrer."¿
(Code Civ. Proc., § 430.41(a).)¿ Section 430.41 further provides, "The
demurring party shall file and serve with the demurrer a declaration stating
either of the following: (A) The means by which the demurring party met and

conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. [¶] (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” Code Civ. Proc., § 430.41(a)(3).)

Here,

Pure Eco did not submit any declaration in support of their demurrer. Plaintiffs confirm Pure Eco did not meet and confer prior to filing this demurrer.

(See Litvak Decl., ¶ 6.)

In reply, Pure Eco contends

it made informal efforts to meet and confer as evidenced by email communications as early as June 3, 2026.

However, absent from Pure Eco's filings is any email communication from June 3, 2026. Moreover, even if Pure Eco had provided the June 3 email, Pure Eco makes clear that it attempted to meet and confer regarding Plaintiffs' eighteenth and nineteenth causes of action only. (See Klein Decl., ¶ 3.) Pure Eco does provide several other emails from June 17, 2026 to July 16, 2026. (Klein Decl., Ex. A.) None of the emails discuss the grounds for demurrer of the fourteenth through twentieth causes of action.

The court finds Pure Eco failed to comply with its meet and confer obligations. This failure is significant given that Plaintiffs stated they were considering dismissing the eighteenth and nineteenth causes of action against Pure Eco. If Pure Eco had met and conferred, and explained its grounds for demurrer as to all causes of action, the filing may well have been avoided.

III. CONCLUSION

The hearing for the demurrer is CONTINUED to August 17, 2026 at 8:30 a.m.

Pure Eco is ordered to meet and confer with Plaintiffs within 5 days of this order.

Plaintiffs

may file a supplemental opposition and Pure Eco may file a supplemental reply consistent with the Code of Civil Procedure section 1005.

Alternatively,

Pure Eco may file a status report no later than 5 court days before the hearing indicating that the court may rule on the demurrer based on the current filings.

Plaintiffs to give notice, unless waived.

Dated: July 28, 2026

Brock T.

Hammond

Judge of

the Superior Court

[1] Plaintiffs did not timely serve
the opposition on Pure Eco.

Notwithstanding the procedural defect, the court exercises its
discretion to consider the arguments raised therein.